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The International Criminal Court (ICC) is an international organization established in 2002 as the international community urged for the establishment of an independent international criminal Court that would prevent crimes against humanity, such as those that occurred during WW II by Nazis against Jews or “ethnic cleansing” and genocide that took place in Yugoslavia and Rwanda during the 1990s. The ICC's core mandate is to “act as a court of last resort with the capacity to prosecute individuals for genocide, crimes against humanity and war crimes”. The ICC is a "court of last resort" and can begin legal proceedings only when individual countries' courts cannot or will not act. It can accept cases when a member country requests its help, when the UN Security Council directs it to investigate, or when its chief prosecutor decides to do so. The Court aims to end impunity and bring those responsible for crimes against humanity to justice to prevent them in the future. It is governed by an international treaty called the Rome Statute that set up the ICC's procedures, rules, and mechanisms. Over 120 countries are part of the Court (Understanding the ICC: Pg. 4-5).

Since its establishment, the ICC has opened investigations of crimes in ten countries, including Uganda, Sudan, the Democratic Republic of Congo, Libya, and the Central African Republic. Three convictions for the core international crimes were issued, including two Congolese warlords of war crimes and crimes against humanity. By prosecuting child soldiers'

recruitment and crimes of sexual violence, the ICC has sent strong messages that the world condemns such crimes (Phooko, 2011). However, the Court was criticized for the ineffectiveness of bringing war criminals to justice quickly and efficiently. The Court's processes are complicated and lengthy. It can take months and years to bring the accused criminal to Court as the complexities of war crimes require long and thorough investigations before the accused can be brought in front of the Court. The ability of the UN Security Council to defer hearings for 6 or 12 months, or even to grant immunity to UN Security Council members (such as the US, which was given immunity from war crimes conducted in Iraq or tortures in Guantanamo Bay) is another reason why ICC can be perceived as ineffective. ICC decisions not to authorize the opening of an investigation in Afghanistan was seen as protecting the US from possible proceedings although there was ample evidence of CIA's rendition, detention, and interrogation program "in Afghanistan, although the Court was given the power to prosecute all nationals where the crime was committed in the territory of a state party (Human Rights Watch, 2020). Similarly, the ICC decision about the immunity of former Syrian president Bashir was met by criticism of the international community.

Also, there is a concern about the cost that ICC has incurred since its inception. It is estimated that approximately €1.5 billion has been spent. However, only three convictions for the core international crimes have been issued so far (Wilmhurt, 2020). The case of a former vice-president of the Democratic Republic of the Congo, Jean-Pierre Bemba and former Côte d'Ivoire president Laurent Gbagbo brings doubt about ICC's ability to successfully prosecute high-level alleged perpetrators as both were acquitted despite the evidence that the prosecution presented (Wilmhurt, 2020).

Overall, both the ICC and the public need to reexamine and shift their current practices and assumptions for the Court to be successful. The powerful states like Russia, America, and China should be pressured by the international community to ratify the Rome Statute. Also, the role of the UN Security Council in the ICC proceedings should be reexamined and limited. Russia, America, and China are important and influential of the UN State Council however have not ratified the Rome Statute. Until they do so, it is questionable whether they exercise their UN rights in the right direction. As the Security Council is a political body that can impose political, economic, and diplomatic sanctions, its active role in matters affecting ICC compromise the Court's independence. Therefore, until all UN Security Council members ratify the Rome Statute, ICC should limit their role.

The international community needs to be educated that the ICC court can only prosecute criminal acts committed after 2002. Presently there is the misconception that ICC can prosecute all criminal acts regardless if they were committed before its inception in 2002. There must be outreach by the ICC to the local governments and civil society organizations that will educate them on how to interpret the ICC statute provisions and manage expectations.

We are not to forget that the ICC is a young organization with a noble goal and complex tasks ahead. The need for the ICC is undisputable despite all challenges and criticism it is facing. As Richard Goldstone, former chief prosecutor of the United Nations International Criminal Tribunals for the former Yugoslavia and Rwanda, has said, "If there were no ICC in existence today, many people in many countries would be agitating for and demanding one. That we have one is a singular achievement. It behoves us to make it the best possible and to assist it, as States, civil society, and individuals, in the best and most productive way possible." (Goldstone, 2019).

References:

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